



School of Commerce and Management Studies
DAYANANDA SAGAR UNIVERSITY
ADMISSION TICKET - SEE Jul 2021

Student Copy



USN : CMS18BC0043 NAME : SURIYA K G

SEMESTER : 5 SESSION: 2021 - 2022

COURSE CODE	INV SIGN	COURSE CODE	INV SIGN	COURSE CODE	INV SIGN
17NC301					
Intellectual Property Rights					



Date of Issue : 13.07.2021

Signature of the Candidate

Signature of the Controller of Examinations

Signature of the Dean

Name: K. G. SURYA .

BCom (ACCA): VM
Sem.

USN: CM318BC0043.

Course: Intellectual Property Rights.

Code: 17BC301

Sec-A

2. Unfair competition is using illegal, deceptive, and fraudulent selling practices that harm consumers or other businesses in order to gain a competitive advantage in the market. Federal and state laws fight against these issues. There are several types of unfair competition.
7. WIPO is the global forum for intellectual Property (IP) services, policy, information and cooperation. We are a self-funding agency of the United Nations, with 193 members or states. Our mandate, governing bodies and procedures are set out in the WIPO Convention, which established WIPO in 1967.

3. * Brand names like Apple, McDonald's, and Dolce & Gabbana.

* Product name like iPod and Big Mac.

* Company logos like the golden arches at McDonald's and NBC's Peacock logo.

* Slogans like Capital One's "what's in your wallet?" and McDonald's "I'm lovin' it".

* Trademark

Patent Proprietor

AIWA

Sony Corp.,
Japan.

BAJAJ

Bajaj
Electrical
Limited

1. Step 1 : Filling of application.

Step 2 & 3 : Preliminary scrutiny and examination.

Step 4 : Show cause notice.

Step 5 : Publication in the geographical indications Journal.

Step 6 : Opposition to Registration.

Step 7 : Rs Registration.

Step 8 : Renewal.

Step 9 : Additional Protection to notified goods.

4.

4. . Literary works.

- Dramatic works.

- Musical works.

- Artistic works.

- Cinematograph films.

- Sound Recordings.

- Literary works.

- Dramatic work.

Sec-B.

10. These rights include the right of adaptation, right of reproduction, right of publication, right to make transactions, communication to public etc. Copyright protection is conferred on all original literary, artistic, musical or dramatic, cinematograph and sound recording works.

Copyright gives an exclusive right to the owner to do certain acts in relation to literary, dramatic, musical, and artistic works, cinematography and sound recordings. In India matters related to copyright are governed by the Copyright Act in 1957, which was subsequently amended in the year 1992 and 2002.

Copyright is valid till the life of the originator plus 50 years after his death.

In the case of cinematographic work, the copyright is valid until 50 years after the work has been made available to the public while for photographic works 25 years after the making of the work.

So, basically for granting a copyright,

the work which is being sought to be protected by copyright must be original.

However, this standard of originality to be determined varies in countries. In

countries which follow common law jurisdiction like United Kingdom and

India, the standard of originality that is needed to be proven is low.

11. Step 1. write down the invention (idea or concept) with as many details as possible.

Step 2. Include drawings, diagrams or sketches explaining the working of the invention.

Step 3. Check whether the invention is Patentable subject matter.

The Patent application in India may be accompanied with a Provisional or a Complete Specification. Provisional Specifications are generally filed at a stage when the invention is still under progress. The Provisional Specification secures the priority date of the invention.

Further, the complete specification is required to be filing of Provisional specification. When the Patent application is accompanied by the complete specification, the Controller may on request of the applicant convert the complete specification into Provisional specification or may cancel the Provisional specification and post date the application to the date of filing of the complete specification.

Apply for a Patent

- * Invention disclosure.
- * Patentability search.
- * Decision to file an Application for Patent.
- * Patent drafting.
- * Filing the Patent application.
- * Request for examination.
- * Responding to objections.

8. Section 38 of the Act, as Performer's Rights, Provides exclusive right of authority to the Performer for doing any act in respect of the Performance without prejudice to the rights conferred on its authors.

This Provision enables the Performers for Payment of royalties which are subjected to committed use.

The 2012 amendment to the Act gave recognition to the rights of the Performers.

It was only recently when the technological changes threatened the livelihood of performers that the law intervened to protect Performers. Musicians, Singers, actors, alcohol etc et cetera... come in the category of Performers.

Under Section 2 (v.v) of the Act
"Performer" includes an acrobat, musician,
Singer, actor, juggler, Street Charmer, a
Person is delivering a lecture, or any
other Person who makes a performance.

Section 38 of the Act confers a
right on performers like actors,
dancers, jugglers, acrobats etc.

And this refers us to Performing

Rights Society (PRS) which provides
intermediary functions, particularly
collection of royalties, between

copyright holders and Parties who wish
to use copyrighted works publicly

In locations such as shopping,
dinning hall etc. ...

Sec - C.

13a,

Trade marks which contain or comprise matter likely to hurt the religious susceptibilities of any class or sections of citizens of India. Trade marks which contain or comprise scandalous or obscene matter. If the usage of the trademark is prohibited under the Emblems and Names (Prevention of Improper Use) Act, 1950

Trademarks in India are registered under the Trademarks Act, 1999. An application is filed to the Registrar of Trademarks of registration. The Registrar may accept the application if he finds any fault in it. The Act also provides a list of

trademarks which cannot be registered.

- Absolute grounds for refusal of registration.

- Relative grounds for refusal of registration.

- ↳ Names which cannot be registered.

- ↳ HS illustrations of refusal of registration.

What can't be trademarked:

- ↳ Generic terms, phrases, or the like.

- ↳ Government symbols or insignia.

- ↳ Vulgar or disparaging words or phrases.

- ↳ Sounds or short motifs.

13b,

The Patent Cooperation Treaty. (PCT) makes it possible to seek Patent Protection for an invention simultaneously in each of a large number of countries by filing an "international" patent application. Such an application may be filed by anyone who is a national or resident of a PCT Contracting State.

Features:

- 1. Formal examination done by one office.
- 1. Retrieval is carried out by one office.
- 1. International Publication done by one office.
- 1. Examination and Authorization finished by national office.
- 1. Single application with legal effect in all PCT countries.